

Doctrine of estoppel does not arise in the case the petitioner is not a party to the disputed document. – The question of estoppel does not arise in view of the fact that the petitioner is not a party to the document and the respondent itself admitted that the guarantee was a mobilization of advance guarantee.

128. Savings as to certain rights : (1) The right of any person to claim compensation under Sce. 124 shall not affect the right of any such person to recover compensation payable under the workmen's compensation Act, 1923 ,(8 of 1923) or any other law for the time being in force; but no person shall be entitled to claim compensation more than once in respect of the same accident.

(2) Nothing in sub-section (1) shall affect the right of any person to claim compensation payable under any contract or scheme providing for payment of compensation for death or personal injury or for damage to property or any sum payable under any policy of insurance.

Comment

Section 128 saves the right of a person to claim compensation recoverable under any other law.

129. Power to make rules in respect of matters in this chapter : (1) The central Government may, by notification , make rules to carry out the purposes of this chapter.

(2) In particular , and without prejudice to the generally of the foregoing power. Such rules may provide for all or any of the following matters, namely :

- (a) the compensation payable for detach;
- (b) the nature of the injuries for which compensation shall be paid and the amount of such compensation.

Comment

Section 129 empowers the Central Government to make rules for carrying out the purposes of Chapter XIII. The matters in respect of which rules shall be made by the Central Government are enumerated in detail in sub-section (2) of this section.

CHAPTER XIV

Regulation of hours of work and period of rest

130. Definitions : In this Chapter, unless the context otherwise requires :

(a) the employment of a railway servant is said to be “Continuous” except when it is excluded or has been declared to be essentially intermittent or intensive ;

(b) the employment of a railway servant is said to be “essentially intermittent” when it has been declared to be so by the prescribed authority on the ground that the daily hours of duty of the railway servant normally include periods of inaction aggregation to the fifty per cent, or more (including at least one such periods of not less than half an hour each)

(c) the employment of a railway servant is said to be “ excluded ” , if he belongs to any one of the following categories, namely : -

(i) railway servant employed in a managerial or confidential capacity ;

(ii) armed guards or other personnel subject to discipline similar to that of any of the armed police forces ;

(iii) staff of the railway schools imparting technical training or academic education;

(iv) such staff as may be specified as supervisory under the rules ;

(v) such other categories of staff as may be prescribed;

(d) the employment of a railway servant is said to be “ intensive ” when it has been declared to be so the prescribed authority on the ground that it is of a strenuous nature involving continued concentration or hard manual labour with little or no period of relaxation.

Comment

Section 130 deals with the definition of certain expressions used in chapter XIV.

131. Chapter not to apply to certain railway servants : Nothing in this chapter shall apply to any railway servant to whom the Factories Act, 1948 (63 of 1948) or the Mines Act, 1952 (35 of 1952) or the Railway Protection Force Act, 1957 (23 of 1957) or the Merchant Shipping Act, 1958 (44 Of 1958) applies.

Comment